

6. 9:00 AM CASE NUMBER: C25-00882

CASE NAME: ANGELINA RUBIO VS. JOEL CASTANEDA

RE MOTION TO BE RELIEVED AS COUNSEL

FILED BY: COUNSEL FOR RUBIO, ANGELINA

TENTATIVE RULING:

Giorgio Cassandra and Lina M. McGurk of BD&J, PC (“Counsel”) filed a Motion to be Relieved as Counsel on July 2, 2026 (the “Motion to be Relieved as Counsel”). The Motion to be Relieved as Counsel was set for hearing on August 10, 2026.

Background

Counsel seeks to be relieved as attorneys for plaintiff Angelina Rubio (“Plaintiff”).

The supporting declaration filed by Counsel indicates that there has been a breakdown in the attorney-client relationship, including as a result of a failure to communicate and cooperate with Counsel. See Declaration filed July 2, 2026, ¶2. Plaintiff has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶3.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. The Court will issue the proposed order after hearing submitted with the moving papers.

7. 9:00 AM CASE NUMBER: C25-03263

CASE NAME: LILIA MENDOZA VARGAS VS. ALEX HERNANDEZ

STRIKE PLTFS PUNITIVE DAMAGES AND ATTORNEY FEES CLAIMS

FILED BY: HERNANDEZ, ALEX ANTHONY

TENTATIVE RULING:

Defendants Testex, Inc. and Alex Anthony Hernandez (“Defendants”) filed a Motion to Strike on March 27, 2026 (the “Motion to Strike”) regarding the Complaint filed by plaintiff Lilia Mendoza Vargas (“Plaintiff”). The Motion to Strike was set for hearing on August 10, 2026. The motion is unopposed.

Background

Defendants move to strike certain portions of the Complaint, the prayers for punitive damages and for an award of attorneys’ fees.

No opposition has been filed to the Motion to Strike.

Analysis

1. Punitive Damages

Defendants seek to strike certain portions of the Complaint praying for punitive damages, contending that the allegations regarding punitive damages are insufficient.

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part of the pleading. Code Civ. Proc. § 435(b)(1); Cal. Rules of Court, Rule 3.1322(b). The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of the pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. Code Civ. Proc. § 436(a)-(b); *Stafford v. Schultz* (1954) 42 Cal.2d 767, 782. An “irrelevant” matter includes allegations not essential to the claim or defense, as well as allegations “neither pertinent to nor supported by an otherwise sufficient claim or defense.” Code Civ. Proc. § 431.10(b).

To support punitive damages, the complaint must allege the ultimate facts of the defendant’s oppression, fraud or malice. *Cyrus v. Haveson* (1976) 65 Cal.App.3d 306, 316.

“Malice” means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” Civ. Code § 3294. “*Animus malus* or evil motive, then, is the central element of the malice which justifies an exemplary award.” *G. D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 30. “Oppression” means subjecting a person to cruel and unjust hardship in conscious disregard of his rights. *Monge v. Superior Court* (1986) 176 Cal.App.3d 503, 511.

The crux of the allegations are that defendant Alex Anthony Hernandez negligently operated a motor vehicle under the influence in a manner constituting “despicable conduct” and causing injury to Plaintiff. See Complaint, ¶¶11 and 12.

Other than the perfunctory reference to “despicable conduct” in a few of the allegations, there are no detailed allegations of facts that would underpin a demand for punitive damages.

A motion to strike is properly granted when a complaint fails to allege facts to state a *prima facie* claim for punitive damages under the standards of the statute. *Turman v. Turning Point of Cent. California, Inc.* (2010) 191 Cal.App.4th 53, 63. Alleging an intentional tort alone is not enough to support a claim for punitive damages: “Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim.” *Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166, citing *G. D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29. Conclusory allegations parroting the language of the statute are not enough for a punitive damages claim to survive a motion to strike. *Blegen v. Superior Court* (1981) 125 Cal.App.3d 959, 963 (“Pleading in the language of the statute is acceptable provided that sufficient facts are pleaded to support the allegations.”).

2. Attorneys’ Fees

As a general rule, each party to litigation must bear its own attorney fees, unless otherwise provided by statute or contract. *Hyduke’s Valley Motors v. Lobel Financial Corp.* (2010) 189 Cal.App.4th 430, 434. Thus, attorneys’ fees are generally not recoverable in a tort action unless allowable by statute or some other exception to the general rule, such as in the case of the “tort of another” doctrine. See *Guinnane Construction Co., Inc. v. Chess* (2026) 119 Cal. App. 5th 689, 698.

No basis is alleged for recovery of attorneys’ fees in this tort action.

Disposition

The Court finds and orders as follows:

1. The Motion to Strike is GRANTED. The prayers for punitive damages and for an award of

attorneys' fees in the operative Complaint are deemed STRICKEN.

2. The moving party shall prepare the proposed order after hearing.

8. 9:00 AM CASE NUMBER: C25-03542

CASE NAME: DEMETRIA JOHNSON VS. SONIC WALNUT CREEK M INC

TO SET ASIDE DEFENDANT SONIC WALNUT CREEK M, INC., DBA MERCEDES-BENZ OF WALNUT CREEK AND LONG BAO NGOS DEFAULT

FILED BY: SONIC WALNUT CREEK M INC

TENTATIVE RULING:

Before the Court is Defendants Sonic Walnut Creek M, Inc. dba Mercedes-Benz of Walnut Creek ("Sonic") and Long Bao Ngo's Motion to Set Aside Defaults.

Procedural Background

Plaintiff filed the Complaint on December 5, 2025. A Proof of Service of Summons was filed on March 2, 2026, indicating that Defendant Ngo was personally served on February 4, 2026. A second Proof of Service of Summons was filed on March 16, 2026, indicating that Sonic was served by personal service on February 6, 2026. Thereafter, on March 16, 2026, Plaintiff sought and default was entered against both Defendants.

Defendants filed the instant motion to set aside on April 23, 2026.

Legal Standard

Defendant moves to set aside the default judgment pursuant to California Code of Civil Procedure section 473 (b). "The statute includes a discretionary provision, which applies permissively, and a mandatory provision, which applies as of right." (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 25.) "Although this bifurcation is not demarcated in any internal subtitling, it is plainly evidence in the textual structure of the statute." (*Ibid.*) Defendants move under the mandatory provision.

The 'mandatory' provision, which Defendants rely upon, relates to times when an attorney admits fault in causing the default. This provision is set forth in the later portion of the statute:

Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect.

"[T]he court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect vacate any ... resulting default [or default judgment] ... entered against his or her client...." (Code Civ. Proc. § 473, subd. (b).)